

Pending bill-correction representation treated as Supply Code clause 6.5 application

Allahabad High Court · Division Bench · 1 December 2016 · Writ-C No. 56838 of 2016 · **Writ disposed; Executive Engineer to decide clause 6.5 application in six weeks**

HEADNOTE

A pending representation seeking correction of an electricity bill is to be treated as an application under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Executive Engineer must decide it by a reasoned and speaking order within six weeks of production of a certified copy of the order. The writ is disposed without examining the bill on merits.

FACTUAL SUMMARY

Ashok Kumar petitioned the Allahabad High Court against the Superintending Engineer of Paschimanchal Vidyut Vitran Nigam Limited and two others. His grievance was that a representation seeking correction of his electricity bill remained pending with the distribution licensee. Counsel for both sides were heard. The Court did not inquire into the correctness of the bill; the live complaint was only that the representation had not been disposed of.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction representation treated as clause 6.5 application

HOLDING

A pending representation for correction of an electricity bill is to be treated as an application under clause 6.5 of the Electricity Supply Code, 2005, and the Executive Engineer is directed to decide it by a reasoned and speaking order within six weeks of production of a certified copy of this order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE PETITIONER'S ELECTRICITY BILL

The writ was disposed by remitting the pending representation as a clause 6.5 application; the bill was not examined on merits. ¶ 1